

Contentious Chamber

Decision on the merits 77/2025 of April 24, 2025

File number: DOS-2024-01067

Subject: Complaint against Google for refusal to delist (right to be forgotten)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Yves Poulet and Romain Robert, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority¹ (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019²;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X represented by Carine Doutrelepon, whose office is located at Square Vergote 20, 1030 Brussels, hereinafter referred to as "the complainant."

The defendant: Google LLC, 1600 Amphitheatre Parkway Mountain View, CA94043, California (United States of America), represented by Me Gerrit Vandendriessche and Me Pierre Antoine, whose office is located at Tour & Taxis Building, Avenue du Port 86C 8414 / BE-1000 Brussels, hereinafter referred to as "the defendant."

1 The DPA reminds that the revised organic law came into force on 01/06/2024. It only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date. Files initiated before 01/06/2024, such as the present file, are subject to the provisions of the previous version of the LCA accessible here:

<https://www.autoriteprotectiondonnees.be/publications/loi-organique-de-l-apd.pdf>

2 The new internal regulations of the DPA, resulting from the amendments made by the Law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), came into force on 01/06/2024. It only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date. Files initiated before 01/06/2024 are subject to the provisions of the internal regulations as they existed before that date.

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I. Facts and procedure

1. On February 27, 2024, the complainant filed a complaint with the Data Protection Authority (hereinafter "the DPA") following the defendant's refusal to delist the two links listed below from the results of the Google Search engine (point 5).

2. The complainant is a higher education teacher. In 2008, a complaint for sexual harassment was filed against him with the police by a former student (hereinafter "disputed facts"). The management board of the institution decided not to pursue disciplinary proceedings until the judicial authorities had ruled on the complaint against the complainant and asked the Government of the French Community whether preventive suspension should be considered.

3. In 2009, the Minister of Higher Education decided to suspend the complainant from his duties for a period of three months (hereinafter "Order pronouncing the suspension"). The complainant's suspension was subsequently extended twice:

- On [...] 2009, the Minister of Higher Education informed the complainant of the extension of his suspension for an additional period of three months (hereinafter "order pronouncing the 1st extension of the suspension").

- On [...] 2009, the Minister of Higher Education informed the complainant a second time of the

extension of his suspension for an additional period of three months (hereinafter "order pronouncing the 2nd extension of the suspension").

4. In 2009, the complainant filed two annulment appeals before the Council of State against the aforementioned Government orders. These appeals resulted in the following judgments from the Council of State:

- The judgment of the Council of State No. [...] annulled the aforementioned order regarding the 2nd extension of the suspension.
- The judgment of the Council of State No. [...] rejected the annulment request regarding the aforementioned order concerning the 1st extension of the suspension.

5. On July 24, 2023, and November 10, 2023, the complainant submitted two requests for delisting to Google for the following two URLs that appear when the complainant's name is entered into the Google Search engine (hereinafter "disputed URLs," "disputed content," or "links"):

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URL No. 1: [...] : website "...", reproduces the ruling of the Council of State No. [...], hereinafter referred to as "URL No. 1"³.

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URL No. 2: [...] : website "...", reproduces the ruling of the Council of State No. [...], hereinafter referred to as "URL No. 2"⁴.

6.

On July 25, 2023, the defendant informed the complainant that it had refused the de-referencing request concerning URL No. 1, in the following terms:

"Hello,

Thank you for your attached complaint.

Regarding the following URLs: [...]

Based on the information we have, it appears that these URLs relate to matters concerning your professional life that are of significant public interest. For example, information about the current or recent professions or businesses with which you have recently been associated may be of interest to consumers, users, or existing or potential participants in the services or products provided by these businesses or professions. That is why we are currently unable to proceed with the removal of these URLs.

Given the information available to us at that time, Google LLC has decided to take no action regarding these URLs.

You may send your removal request directly to the webmaster of the site. This person controls the site and can therefore remove the relevant content and prevent it from appearing in search engines. To find out how to contact a website's webmaster, please consult the dedicated Google Search Help Center.

If outdated content from a site modified or removed by the webmaster still appears in Google search results, use this tool to update those results. For more information, please consult this page.

If you disagree with Google LLC's decision, you can submit the issue to the data protection authority in your country or seek legal recourse. However, if you have additional information regarding your request and wish to submit it to us, please do so by replying to this message first. In your communication with the data protection authority, you may include reference number 6-

3 This URL was still accessible at least until October 11, 2024, as evidenced by Exhibit 1/d attached to the defendant's submissions, consisting of a screenshot of the site [...] and its source code.

4 This URL was still accessible at least until October 11, 2024, as evidenced by Exhibit 1/e attached to the defendant's submissions, consisting of a screenshot of the site [...] and its source code.

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1507000034388 and a copy of the request confirmation that Google LLC sent you.

To learn more about how Google LLC makes these decisions, please consult the Transparency Information Help Center. The help center contains information on the removal of URLs from search results under European data protection law, including the key factors in these decisions (...).

7.

On November 10, 2023, the defendant informed the complainant that it had refused the de-referencing request concerning URL No. 2, in the following terms:

"Hello,

Thank you for your attached complaint.

Regarding the following URLs: [...]

After reviewing the balance between the interests and rights associated with the content in question, including factors such as its continued publication by an administrative authority, Google has decided not to block it.

Given the information available to us at that time, Google LLC has decided to take no action regarding these URLs.

You may send your removal request directly to the webmaster of the site. This person controls the site and can therefore remove the relevant content and prevent it from appearing in search engines. To find out how to contact a website's webmaster, please consult the dedicated Google Search Help Center.

If outdated content from a site modified or removed by the webmaster still appears in Google search results, use this tool to update those results. For more information, please consult this page.

If you disagree with Google LLC's decision, you can submit the issue to the data protection authority in your country or seek legal recourse. However, if you have additional information regarding your request and wish to submit it to us, please do so by replying to this message first. In your communication with the data protection authority, you may include reference number 2-2784000034965 and a copy of the request confirmation that Google LLC sent you.

To learn more about how Google LLC makes these decisions, please consult the Transparency Information Help Center. The help center contains information on the removal of URLs from search results under European data protection law, including the key factors in these decisions.

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Information on the removal of URLs from search results under European data protection law, including the key factors of these decisions (...)

8.

On March 6, 2024, the complaint was declared admissible by the Frontline Service (hereinafter "SPL") based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

9.

On May 16, 2024, the Contentious Chamber sent a letter to the parties in which it communicated several pieces of information.

It indicated that the position of the defendant developed in its responses to the various requests from the complainant is too brief for the Contentious Chamber to proceed with a proper assessment of its arguments in light of Article 17.3.a) of the GDPR. The position of the complainant, on the other hand, is sufficiently developed, both in its requests to the defendant and in its complaint.

The Contentious Chamber therefore requests the defendant to kindly justify the reasons why it believes that Article 17.3.a) of the GDPR applies to the URLs for which it refused de-referencing.

It requests the defendant to submit its response by Monday, June 17, 2024.

10.

On May 24, 2024, the defendant requested a copy of the file (Art. 95, §2, 3° LCA), which was transmitted to it on June 10, 2024. The defendant stated that it accepts to receive all communications related to the case electronically, except for key documents in the case and notably those that trigger deadlines, which it also requests to receive by mail.

11.

On June 7, 2024, the defendant requested the Contentious Chamber to set a new deadline for responding, taking into account the time needed for the Contentious Chamber to provide access to the file. On June 11, 2024, the Contentious Chamber informed the parties of an extension of the deadline for response until June 27, 2024.

12.

On June 27, 2024, the defendant submitted its response letter along with annexes to the Contentious Chamber and the complainant.

13.

On August 6, 2024, the Contentious Chamber decided, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

14.

On August 6, 2024, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

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The deadline for the receipt of the defendant's response conclusions was set for August 28, 2024, the deadline for the complainant's reply conclusions for September 19, 2024, and the deadline for the defendant's summary conclusions for October 11, 2024.

15.

On August 8, 2024, both the complainant and the defendant requested a copy of the file (Art. 95, §2, 3° LCA), which was transmitted to them on August 12, 2024.

16.

On August 28, 2024, the Contentious Chamber received the defendant's response conclusions. The defendant having submitted summary conclusions, its arguments are summarized in point 18 below. The complainant's conclusions:

17.

On September 19, 2024, the Contentious Chamber received the complainant's reply conclusions. On this date, the complainant expressed its intention to avail itself of the possibility of being heard in accordance with Article 98 of the LCA. The complainant's arguments can be summarized as follows.

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As a first ground, the complainant considers that the defendant violates Article 12 of the GDPR, which relates to the transparency of information and communications and the modalities for exercising the rights of the data subject. Regarding Article 12.1 of the GDPR, the complainant argues, contrary to the defendant's assertions, that this provision fully applies in this case. This is because Article 12 of the GDPR constitutes the common foundation governing the exercise of the rights of data subjects, such that the exchanges, responses, and any refusals made in this context fall within its scope. Moreover, Article 12.1 of the GDPR targets any communication made under Articles 15 to 22 of the GDPR, which includes exchanges in the context of Article 17 of the GDPR, as in this case. The complainant believes that Article 12.1 must be read in conjunction with Article 12.2 of the GDPR. The complainant therefore considers that the obligation of transparency—which involves providing information in a transparent, understandable, and easily accessible manner, in simple terms—also applies to refusals to comply with the exercise of a right, in the explanation of the reasons justifying this refusal. However, the complainant believes that, in the responses provided by the defendant, the latter merely uses generic and non-personalized terms, to the point that it questions whether there is a genuine human analysis or if the decision is purely automated. The complainant considers that these responses do not allow him to fully understand the reasons for the refusal. He also believes that none of the criteria taken into account are mentioned by the defendant, let alone their application to the concrete facts. According to him, the decision is not motivated at all and does not allow him to understand the elements on which the defendant relied, and that it is a standardized decision.

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As a second argument, the complainant considers that the defendant violates Article 17 of the GDPR, relating to the right to erasure. The complainant qualifies the data processed by the defendant as data related to criminal convictions and offenses within the meaning of Article 10 of the GDPR. However, the interests of the data subject generally prevail over those of internet users in this case, in accordance with the case law of the CJEU, which imposes enhanced protection for the processing of this type of data. Furthermore, given that he has not been convicted for the facts reported in the disputed URLs, the referencing of these URLs is not justified by a strictly necessary public interest in

receiving this information. He considers that these URLs convey erroneous and incomplete information, since the harassment complaint was classified as not pursued and the suspension decision was annulled by the Council of State. Additionally, the complainant believes that the publication of the disputed content has no interest for any potential public debate and is only justified by his legal interest, which does not require his name to be associated with it. He also mentions a disproportionate harm caused by the referencing of the disputed content. The complainant emphasizes the age of the facts, with more than 15 years having passed since the disputed events. Finally, he reminds that he is not a public figure, but a mere academic.

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As a third argument, the complainant specifies that he previously submitted a request for erasure to the site [...], in order for the disputed content to be removed at the source, but this did not succeed. He clarifies, however, that making a request for erasure to the website that originated the referenced content is in no way a mandatory prerequisite for a request for de-referencing.

The conclusions of the defendant:

18.

On October 11, 2024, the Contentious Chamber received the summary conclusions from the defendant. The defendant's argumentation can be summarized as follows:

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As a first argument put forward as a main point, the defendant asserts that it has not violated Articles 12.1 and 12.4 of the GDPR. It argues, in substance, that Article 12.1 of the GDPR does not apply to the information that must be provided in the case of a refusal to comply with the right to erasure, this refusal being specifically framed by Article 12.4 of the GDPR. According to it, Article 12.1 of the GDPR would not apply to the information to be provided under Article 12.4 of the GDPR. The defendant therefore believes that the obligation to mention the reasons for the refusal is not subject to the provisions of Article 12.1 of the GDPR.

The defendant argues that neither the DPA nor the complainant accuse it of violating legal provisions. The defendant contends that the obligation to provide "the reasons for its inaction," as provided in Article 12.4 of the GDPR, cannot be interpreted as imposing a duty of justification in the sense of administrative law, let alone an obligation of sufficient justification, as understood by the Contentious Chamber in its letter of August 6, 2024. According to the defendant, this provision only implies that it must indicate to the data subject the reasons why it does not respond to the exercise of their right. It does not require the defendant to provide a complete and adequate justification and does not prohibit it from expressing itself in allegedly generic and non-personalized terms. However, it believes that in this case, in the two responses sent to the complainant, the defendant adequately explained the reasons for which it did not grant the de-referencing.

As a subsidiary argument, the defendant considers that, even assuming that Article 12.1 of the GDPR is applicable in this case, the fact that the complainant did not fully understand the reasons for the refusal of his requests cannot, in itself, constitute a violation of the aforementioned provisions.

According to it, the obligation of comprehensibility provided for in Article 12.1 does not fall under a subjective test. It must be demonstrated that the data controller did not take appropriate measures to provide the information in a comprehensible manner, which, according to the defendant, cannot be established in this case.

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As a second argument put forward as a main point, the defendant believes that Article 17.3.a) applied to the disputed URLs and that the interference with the fundamental rights of the complainant is justified by a strictly necessary public interest in transmitting and receiving information, particularly considering the following circumstances:

o

The disputed content originates from official public sources, namely decisions of the Council of State;

o

The disputed content concerns the professional life of the complainant, namely the preventive suspension measure he was subjected to as a teacher;

o

The complainant was suspended due to serious facts, namely suspicions of sexual harassment towards students, while he held a position of authority and trust as a teacher;

o

The disputed content contributes to the debate on issues of general interest, namely the fight against sexual harassment (the so-called "me too" phenomenon);

o

There are both more effective measures to implement the complainant's request and less intrusive to the rights and freedoms of the public and the defendant;

o

Although somewhat dated, the disputed content remains current and relevant since the complainant is still a teacher.

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As a third argument put forward as a primary claim, the defendant requests the Contentious Chamber not to issue an injunction to de-reference other URLs that are not identified. Indeed, Article 17 of the GDPR would only allow for the request for the deletion of personal data that has actually been processed. It does not apply to unidentified data or hypothetical or future processing. Such an injunction would also impose a general obligation of surveillance on the defendant, which would be contrary to Article 8 of the Digital Services Act. Furthermore, such a request would also be incompatible with the common law principles relating to current and future interest, as defined by Article 18 of the Judicial Code.

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As a fourth argument, put forward as a subsidiary claim, the defendant considers that the principle of legality of penalties opposes any sanction other than a de-referencing order. It believes that the provisions of Articles 12.1, 12.4, 17.1, and 17.3 of the GDPR do not constitute a clear and precise rule allowing the defendant to reasonably know in advance what it must do to avoid a violation of the GDPR. The defendant emphasizes that any disagreement by the Contentious Chamber with the outcome of the analysis conducted based on Articles 17.1 to 17.3 of the GDPR would not indicate any fault on its part, but would at most reflect a reasonable difference of appreciation inherent in the casuistic approach to the right to de-reference. A de-referencing order would therefore, according to it, be the only reasonable sanction.

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As a fifth argument put forward as a subsidiary claim, the defendant requests the Contentious Chamber not to impose an administrative fine, as it has in any case not committed a violation of Articles 12.1, 12.4, 17.1, and 17.3 of the GDPR either deliberately or negligently. Given the enormous investments the defendant has made to handle de-referencing requests, the considerable volume of de-referencing requests the defendant must process, the infinitesimal number of disputes concerning GDPR rights, as well as the concise, comprehensible, clear, and simple responses the defendant has provided to the complainant.

19.

On February 28, 2025, the parties are informed that the hearing will take place on April 2, 2025.

20.

On March 12, 2025, the complainant informs the Contentious Chamber as well as the defendant of a change in representation. The complainant's new lawyer also expresses her intention to submit new documents to the file, as well as to submit additional conclusions on these documents. She also expresses her wish to postpone the date of the hearing.

5 Regulation (EU) 2022/2065 of October 19, 2022, on digital services (hereinafter "Digital Services Act" or "DSA").

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21.

On March 12, 2025, the defendant informs the Contentious Chamber, as well as the complainant, that it opposes the establishment of a new schedule and the postponement of the hearing date.

22.

On March 19, 2025, the Contentious Chamber informs the parties that it will neither open a new schedule for conclusions nor postpone the hearing date. Regarding the new documents mentioned in the complainant's letter, the Contentious Chamber informs the parties on March 26, 2025, that they may be communicated simultaneously to the other party as well as to the secretariat of the Contentious Chamber. It specifies that the consideration of these new documents in the debates will be discussed during the hearing on April 2, 2025.

23.

On March 27, 2025, the secretariat of the Contentious Chamber receives from the complainant the new documents 7/a to 11.

24.

On April 2, 2025, the parties are heard by the Contentious Chamber.

25.

On April 8, 2025, the minutes of the hearing are submitted to the parties.

26.

On April 21 and 22, 2025, the Contentious Chamber receives comments respectively from the defendant and the complainant regarding the minutes, which it decides to include in the file as an annex to the minutes.

II. Motivation

II.1. Preliminary considerations

Regarding the exclusion of new documents

27.

On March 12, 2025, the complainant's new lawyer requested the Contentious Chamber to include the new documents 7/a to 11 in the debates. On March 27, 2025, these documents were communicated to the parties, and their consideration was discussed during the hearing on April 2, 2025.

28.

First of all, the Contentious Chamber wishes to remind that it established a schedule for the submission of documents and written conclusions and communicated it to the parties by a letter dated August 6, 2024. The Contentious Chamber indicated in point 5 of this letter the following:

"If you wish to add documents to the file, please communicate them — preferably electronically, in accordance with point 1 — to the other party, and they will be submitted simultaneously to the secretariat of the Contentious Chamber within the deadlines indicated above. After the expiration of these submission deadlines, the Contentious Chamber reserves the right to refuse to examine new documents."

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29.

As previously stated, the deadline for the submission of documents and conclusions by the complainant was set for September 19, 2024. On that date, the complainant, through his counsel, submitted conclusions and documents. The Contentious Chamber notes that as of the request for the submission of new documents on March 12, 2025, the deadline for the submission of documents has been significantly exceeded.

30. The Contentious Chamber may, under certain circumstances, decide to consider new documents submitted outside the schedule of conclusions it has established. However, such inclusion must be done in accordance with the principle of good administration, including respect for the rights of the defense of the defendant, who must have had the opportunity to review these documents and to comment on them. It should be noted in this regard that the defendant was only able to review these new documents less than a week before the hearing.

31.

During the hearing on April 2, 2025, the Contentious Chamber heard the parties on this matter and finds that no new factual element has been presented that would justify reopening the debates at such an advanced stage of the proceedings on the merits. Moreover, taking into account these numerous new documents, without allowing the defendant to conclude on them, would severely undermine her rights of defense. The Contentious Chamber also specifies that a change of representation for one of

the parties cannot, by itself, justify the reopening of the debates or the introduction of new documents.
32.

In light of the elements mentioned above, the Contentious Chamber decides to exclude from the debates the new documents 7/a to 11 from the complainant that were added late to the proceedings. Regarding the complainant's request to expand the scope to include the exercise of his right to object, as well as the injunction to delist other URLs not identified in the initial complaint

33. In the complainant's reply conclusions of September 19, 2024, the complainant characterized his requests regarding the disputed URLs as requests for deletion within the meaning of Article 17 of the GDPR. However, at the hearing, the complainant explained that if one examines the motivation of his requests, based on his personal situation and the harm he has suffered, it becomes clear that it was, in fact, the exercise of his right to object, in accordance with Article 21 of the GDPR. The complainant therefore requested at the hearing that the Contentious Chamber expand the scope so that it is not limited to a request for delisting the two disputed URLs, but that it recognizes the exercise of the right to object to any processing by the defendant of data related to a complaint of sexual harassment against the complainant.

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34. In this regard, the defendant opposes the invocation of new provisions of the GDPR at such a late stage, for the first time during the hearing, without having had the opportunity to defend against them. Furthermore, it considers that it cannot be required to de-reference other URLs that are not specifically identified by the complainant. Such a request cannot be acceptable, as it would not be permitted by the GDPR, with Article 17 of the GDPR applying only to personal data that is actually processed, and not to hypothetical or future processing; it would also constitute a surveillance measure contrary to Article 8 of the DSA; finally, it would also represent an action ad futurum, which would not be permitted under common law in the absence of a born and current interest.

35. The Contentious Chamber recalls that, in accordance with the case law of the Market Court, it follows from the principle of good administration and respect for the rights of the defense that the Contentious Chamber must, from the outset of the proceedings, inform the party being prosecuted of all the factual and legal elements that are alleged against them. In this regard, the Market Court recently specified the following:

"It is necessary for the person concerned to understand what behavior is being reproached to them. However, this does not necessarily imply that the authority must specify the precise qualifications of the facts or indicate the statutory provisions that may have been violated at the time of their commission (the Contentious Chamber emphasizes)."

36. In this case, the Contentious Chamber delineated the scope of the debates, in its invitation letter to conclude dated August 6, 2024, to the alleged violation of Articles 12.1 and 12.4 of the GDPR, as well as the applicability of Article 17.3.a) of the GDPR to the complainant's de-referencing requests. While it is true that Article 21 of the GDPR is closely related to Article 17, in that the exercise of the right to object can ground a right to erasure within the meaning of Article 17.1.c), it should be emphasized that the complaint, as well as the complainant's conclusions, exclusively targeted the de-referencing of two URLs, explicitly relying on Article 17 — an article commonly invoked in cases related to the right to be forgotten. On this basis, the defendant could not reasonably understand that it was also required to defend itself against a potential violation of Article 21 of the GDPR, which it did not do in this instance.

37. Furthermore, the complainant's request, which essentially seeks to order the defendant to de-reference all URLs, current and future, related to the complaint of sexual harassment against them, raises several points. First, it is important to recall the material scope of the GDPR, which only applies to the processing of data, in accordance with Article 2.1 of the GDPR. The exercise of the right to erasure based on Article

6 Brussels Court of Appeal, Market Court Section, judgment 2020/AR/1159, of February 24, 2021, p. 23.

7 Brussels Court of Appeal, Market Court Section, judgment 2024/AR/1615, of January 22, 2024, point 10 and cited case law.

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17.1 of the GDPR can only be conceived in relation to an existing and determined processing activity. Thus, a request for de-referencing can only be exercised concerning the search results that actually appear when the complainant's name is entered into the defendant's search engine. The complainant's request would amount to de-referencing any link pointing to data related to the complainant, which would be contrary not only to the spirit but also to the letter of Article 17 of the GDPR. Requests for the right to be forgotten must be examined in concreto. They require, on the part of the search engine, an individual case-by-case analysis of the referenced links, in order to adequately balance the interests at stake. Consequently, the balancing could differ depending on the referenced content. Finally, a general de-referencing injunction would, in practice, be difficult to apply for the defendant, particularly because it is not the originator of the content it references. Thus, it is only ex post, following a request made by the data subject, that the search engine operator must carry out such verification, under the supervision of the Contentious Chamber.

38. Therefore, the Contentious Chamber considers that the aforementioned requests from the complainant cannot be upheld and will only address in this decision the provisions of the GDPR that the Contentious Chamber had expressly indicated as being at issue in its letter of August 6, 2024, which excludes Article 21 of the GDPR. It will also limit its examination to the URLs identified by the complainant in his complaint, namely the disputed URL No. 1 and No. 2.

II.2. Regarding compliance with Articles 12.1 and 12.4 of the GDPR

39. The complainant requests that the Contentious Chamber finds that the defendant has not complied with Article 12 of the GDPR by failing to provide him with clear, understandable, and accessible information, which did not allow him to fully understand the reasons for the refusal that underpinned the decision not to respond to his de-referencing requests (point 17).

40. In its letter of August 6, 2024, the Contentious Chamber delineated the framework of the discussions regarding the grievance raised below by the complainant concerning the alleged violation of Articles 12.1 and 12.4 of the GDPR due to the insufficient reasoning for Google's refusal of the complainant's de-referencing requests in the exchanges that took place prior to the filing of the complaint.

41. The Contentious Chamber recalls that it is the responsibility of the data controller to respect the principle of transparency enshrined in Article 5.1.a) of the GDPR. Recital 39 of the GDPR specifies that the principle of transparency requires that any information and communication relating to the processing of personal data be easily accessible, easy to understand, and expressed in clear and simple terms. This principle is notably formalized in Article 12 of the GDPR, which defines the obligations of the data controller regarding the modalities of information and communication in the context of the exercise of the rights of the data subject. The Contentious Chamber therefore wishes to emphasize that Articles 12.1 and 12.4 condition the effective application of different rights of the data subject, particularly in the context of the present case, of Article 17 of the GDPR.

42. Article 12.1 of the GDPR states that:

"The data controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible manner, using clear and simple language, particularly for any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When the data subject requests it, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means (the Contentious Chamber emphasizes)."

43. Article 12.4 of the GDPR states that:

"If the data controller does not respond to the request made by the data subject, it shall inform the data subject without undue delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy (the Contentious Chamber emphasizes)."

II.2.1. Regarding the scope of Articles 12.1 and 12.4 of the GDPR

44. The defendant believes that the Contentious Chamber and the complainant are reproaching it for provisions that are not provided for by the GDPR. These articles cannot be interpreted as imposing a

duty of reasoning in the sense of administrative law, let alone an obligation of sufficient reasoning. According to the defendant, the obligation to mention the reasons for the refusal to respond to a right of the data subject, in the sense of Article 12.4 of the GDPR, constitutes a specific and distinct communication obligation, which is not subject to the transparency and comprehensibility requirements of Article 12.1 of the GDPR (point 18).

45. The Contentious Chamber cannot agree with this interpretation. While it is true that Article 12.1 of the GDPR does not explicitly cite Article 12.4 within its scope, it is necessary...

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to emphasize that Article 12.1 applies to any communication under Articles 15 to 22 of the GDPR, and therefore includes any potential refusals to comply with the rights referred to in these articles. The notification by the defendant of the refusal to comply with the right to erasure constitutes a "communication" under Article 17 of the GDPR, and must therefore fully meet the requirements set out in Article 12.1 of the GDPR (point 42). Furthermore, Article 12.4 states that the data controller "informs" of the reasons for its inaction. The obligation to inform, according to the Contentious Chamber, implies ensuring a certain understanding of the reasons for the refusal communicated and is certainly linked to the principle of transparency set out in Article 5 as well as the other paragraphs of Article 12 of the GDPR.

46. Therefore, Article 12.1 read in conjunction with Article 12.4 must be interpreted as imposing on the defendant the obligation to take appropriate measures to inform the data subject of the reasons for not complying with their request for de-referencing, in a manner that is concise, transparent, understandable, and easily accessible, in clear and simple terms.

47.

To assert otherwise would allow data controllers to provide incomprehensible responses when they decide not to comply with a request to exercise a right. According to the defendant, a simple indication of the reason for the refusal would suffice, without allowing the Contentious Chamber or the complainant to challenge the level of comprehensibility of the response provided by the defendant. This would certainly go against the principle of transparency of Articles 5.1.a) and 12 of the GDPR.

II.2.2. Regarding the comprehensibility of the responses provided by the defendant

48. It being established that Articles 12.1 and 12.4 of the GDPR apply to the responses initially provided to the complainant by the defendant to inform him of the refusal to comply with his two de-referencing requests, it is therefore the responsibility of the Contentious Chamber to examine compliance with these provisions, particularly regarding the requirement of comprehensibility, given that the complainant reproaches the defendant for these standardized responses not allowing him to fully understand the reasons for the refusals.

49. In its guidelines on transparency under the GDPR, the Article 29 Working Party (hereinafter "Article 29 Group") defines the requirement of "comprehensibility" as follows:

"The requirement that this information be 'comprehensible' means that it should be understandable by the majority of the intended public. Comprehensibility is closely linked to the requirement to use clear and simple terms. (...) The requirement for clear and simple terms means that information should be provided in the simplest possible way, avoiding complex sentences and linguistic structures. Information should be concrete and reliable; it should not be phrased in abstract or ambiguous terms nor leave room for different interpretations."

50. In this case, regarding URL No. 1, the defendant refused to comply with the complainant's request in the following terms:

"it seems that these URLs relate to matters concerning your professional life that are of great interest to the public. For example, information about current or recent professions or businesses with which you have recently been associated may be of interest to consumers, users, or existing or potential participants in the services or products provided by these businesses or professions (the Contentious Chamber emphasizes)."

The complainant believes that this response is "generic" and "pre-fabricated," as it uses the terms "consumers, users, participants" to encompass the entire concerned public. According to him, this response does not correspond to the audience he addresses as a professional, given that as a teacher, he primarily encounters clients, patients, or students.

51.

Regarding URL No. 2, the defendant merely responded to the complainant that:

"(...) After examining the balance between the interests and rights associated with the content in question, including factors such as its continued publication by an administrative authority, Google decided not to block it (the Contentious Chamber emphasizes)."

The complainant believes that this response does not allow him to understand the interests at stake and does not provide a genuine explanation regarding the reasons for the refusal. He also points out an inconsistency, given that the criterion used to refuse his request differs between the first and second requests while the URLs concern the same topic.

52.

The defendant, on the contrary, believes that the two responses provided in this case comply with the requirements of Articles 12.1 and 12.4 of the GDPR, insofar as, in its two refusal decisions, it has:

- "Referred to the URLs in question related to the request, if applicable distinctly if there are several;

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-

States its decision to refuse as well as the underlying reasons, specifying that this decision is based on the information then available to it;

-

Indicates that it is also possible to directly contact the webmaster of the disputed websites, with specific help guidelines;

-

Indicates the procedure to follow if the content of the disputed websites becomes outdated, is modified, or deleted;

-

Explains the steps to take if the complainant disagrees with its decision;

-

Refers to online documents providing more detailed information on how it makes such decisions.

The defendant further adds that the fact that the complainant did not fully understand the reasons for the refusal of their requests cannot, in itself, constitute a violation of the obligation of comprehensibility provided for in Article 12.1 of the GDPR. According to her, this obligation does not fall under a subjective assessment, and it is rather up to demonstrate that the data controller did not take appropriate measures to provide the information in a comprehensible manner, which, in this case, has not been demonstrated (point 18).

Furthermore, the defendant specifies that the obligation of comprehensibility must be assessed in light of the other requirements of Article 12.1 of the GDPR, and in particular the requirement of conciseness. According to her, there is a tension between these two requirements, one imposing concise communication and the other tending to require more text.

53. The defendant clarified during the hearing, in response to questions from the members of the Contentious Chamber, that due to the very large volume of requests, a tool is used by its agents to process the de-referencing requests. This tool allows human agents to select, based on well-established case law, a series of criteria during their analysis and, depending on the criteria they have documented, to generate a response. This response may be relatively formatted, as some of the formulations used have been designed to cover multiple scenarios. For the sake of conciseness, the response may limit itself to mentioning only the main criterion that motivated the refusal decision.

54. The Contentious Chamber is not opposed, in principle, to the use of partially automated tools to facilitate the processing of de-referencing requests, given the significant number of requests received by the defendant in Belgium. However, it cannot accept standardized decisions. This type of tool, which assists the agent in generating a response, should serve to formalize a human analysis, conducted at the

11 Defendant's conclusions of October 11, 2024, pp. 16 and 17

12 Defendant's conclusions of October 11, 2024, pp. 41 to 44.

13 Automated individual decisions without human intervention are in principle prohibited by Article 22 of the GDPR.

on a case-by-case basis and based on an examination of the facts. However, this response should, to some extent, be tailored to the particular situation of the person concerned, by referencing the specific circumstances of the refusal to enable them to effectively understand the reasons or criteria that motivated the rejection of their request.

55. This interpretation is confirmed by the EDPB in the guidelines 01/2022 on the right of access, which, *mutatis mutandis*, also applies to the refusal to comply with the right to erasure:

“The statement of reasons (in the sense of Article 12.4 of the GDPR) must refer to the specific circumstances to allow the data subjects to assess whether they wish to lodge an appeal against this refusal (the Contentious Chamber emphasizes)”¹⁴.

56. It is the responsibility of the defendant to find a balance between conciseness and comprehensibility in the responses it provides to the data subjects. In this case, the Contentious Chamber finds that the refusal decisions are much more concise than they are comprehensible, particularly regarding the request related to URL No. 2, which contains only a few words (point 51). In the case of both requests, the complainant faced insufficient explanations that could not be understood. The Contentious Chamber believes that these responses lacked transparency in that the defendant should have highlighted the criteria considered and their application to the concrete factual elements of the complainant's request. However, in its response regarding the first URL, it replied in a vague and abstract manner, mentioning only one criterion, which, as the complainant points out, did not fully correspond to their professional situation (point 50). Indeed, this refusal decision, based solely on the professional nature of the information, proves insufficient in light of the sensitivity of the data in question. It should have been supported by other criteria, which the defendant only invoked later, during the proceedings before the Contentious Chamber. In the response regarding the second URL, the defendant merely referred to the particular quality of the source, without invoking other criteria, which is in itself insufficient in this case, also leaving a certain ambiguity and calling into question the reliability of the analysis conducted by the defendant. It is crucial, in order to allow the complainant to understand the refusal decision, to provide them with sufficient information to grasp the elements on which the data controller relied to make their decision.

14 European Data Protection Board (hereinafter “EDPB”), Guidelines 01/2022 on the rights of data subjects - Right of access, adopted on March 28, 2023. Available online: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf, p. 65.

This obligation to inform must also allow the complainant to contest the decision made before the APD.
57.

The Contentious Chamber recognizes that the text of the GDPR does not determine the length or level of detail that the defendant must provide when informing of the refusal to respond to a request for de-referencing. On the other hand, regarding the alleged tension invoked by the defendant between conciseness and comprehensibility in the sense of Article 12.1 of the GDPR, the Contentious Chamber wishes to remind that the requirement of conciseness pursues the same objective as that of comprehensibility, namely a transparency objective in the interest of the data subject. These requirements are cumulative; the information must be both concise and comprehensible, and not one at the expense of the other. Conciseness implies that the information is presented effectively and succinctly, in order to avoid overwhelming the data subjects with an excess of information. This requirement does not oppose the information being presented in a manner that is also comprehensible to the majority of the targeted public, in clear and simple terms.

58. For the reasons mentioned above, the responses of the defendant, by indicating the reason for the refusal in a fragmented manner and without providing an appropriate explanation to the complainant, do not meet the requirement of comprehensibility and consequently violate Articles 12.1 and 12.4 of the GDPR.

II.3. Regarding the refusal to de-reference the disputed links (Article 17 of the GDPR)

59. The complaint submitted for examination by the Contentious Chamber concerns the exercise by the complainant of his right to erasure. His request pertains to links referenced in the results provided

by the search engine "Google Search" when his name is entered as a search criterion (point 5).

60. It is necessary to assess the de-referencing requests made by the complainant in light of Article 17 of the GDPR, the criteria and rules established by the CJEU in its judgment *Google Spain*, the guidelines of the Article 29 Working Party related to this judgment (hereinafter "the Article 29 Group Guidelines"), and the teachings from the judgment of the

15 Article 29 Working Party, Guidelines on transparency under Regulation (EU) 2016/679, adopted on November 29, 2017, revised version adopted on April 11, 2018, p. 9.

16 The de-referencing requests made by the complainant must be examined exclusively in light of Article 17 of the GDPR, which constitutes the relevant legal basis in this case. The interpretation that the Contentious Chamber adopts of this article is based on an autonomous reading of the text, informed by interpretative elements drawn notably from the Article 29 Group Guidelines and the EDPB guidelines. These sources do not in themselves constitute the legal basis for this decision; they are mobilized as interpretative tools to ensure a coherent and compliant application of Union law.

17 CJEU, May 13, 2014, *Google Spain SL and Google Inc. v. AEPD and Mario Costeja González*, C-131/12, ECLI:EU:C:2014:317.

18 Article 29 Working Party, Guidelines on the implementation of the judgment of the Court of Justice of the European Union in the case *Google Spain SL and Google Inc. v. AEPD and Mario Costeja González*, C-131/12, adopted on November 26, 2014, available here:

<https://ec.europa.eu/newsroom/article29/items/667236/en>

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CJEU in the judgment *GC et al. v. CNIL* of September 24, 2019¹⁹ and the Guidelines

5/2019²⁰ on the criteria for the right to be forgotten under the GDPR in the context of search engines of the EDPB (hereinafter "the EDPB guidelines"), in order to ensure a fair balance between, on the one hand, the fundamental rights to respect for private life and to the protection of personal data, enshrined in Articles 7 and 8 of the Charter of Fundamental Rights of the EU (hereinafter "the Charter"), and, on the other hand, the fundamental right to freedom of information of Internet users, guaranteed by Article 11 of the Charter. In the pursuit of this fair balance, various criteria will be taken into account, which will be analyzed below. This right to erasure aims to protect the data subject against processing that is not or no longer legitimate.

61.

It should be noted at the outset that while an infringement of privacy caused by indexing can be amplified due to the indispensable role of search engines in accessing information via the Internet, similarly and for the same reason, de-referencing can impact the freedom of information of Internet users. A balance between interests must therefore necessarily be achieved.

62.

In its judgment *GC et al. v. CNIL*, the CJEU specifies in this regard the following:

"In any event, the operator of a search engine, when faced with a request for de-referencing, must verify, under the important public interest grounds referred to (...) in Article 9, paragraph 2, point g) of Regulation 2016/679 and in compliance with the conditions laid down in those provisions, whether the inclusion of the link to the web page in question in the list displayed following a search carried out from the name of the data subject is necessary for the exercise of the right to freedom of information of Internet users potentially interested in accessing that web page through such a search, protected by Article 11 of the Charter. If the rights of the data subject protected by Articles 7 and 8 of the Charter generally prevail over the freedom of information of Internet users, this balance may, however, depend, in particular cases, on the nature of the information in question and its sensitivity to the privacy of the data subject as well as the public interest in having access to that information, which may vary, notably depending on the role played by that person in public life. (...)

When the operator of a search engine is faced with a request for de-referencing concerning a link to a web page on which such data...

19 CJEU, September 24, 2019, *GC et al. v. CNIL*, C-136/17, ECLI:EU:C:2019:773.

20 EDPB, Guidelines 05/2019 on the criteria for the right to be forgotten under the GDPR in the case of search engines, version 2.0 of July 7, 2020. <https://edpb.europa.eu/our-work-tools/our-documents/g>

sensitive are published, this operator must, based on all relevant elements of the case at hand and taking into account the seriousness of the interference with the fundamental rights of the individual concerned regarding respect for privacy and the protection of personal data, enshrined in Articles 7 and 8 of the Charter, verify, under the important public interest grounds referred to in (...) Article 9, paragraph 2, point g), of Regulation 2016/679 and in compliance with the conditions set out in these provisions, whether the inclusion of this link in the list of results, which is displayed following a search conducted using this person's name, is strictly necessary to protect the freedom of information of internet users potentially interested in accessing this webpage through such a search, as enshrined in Article 11 of the Charter (the Contentious Chamber emphasizes) » 21.

63. With regard specifically to the data referred to in Article 10, that is to say judicial data, European case law establishes specific criteria that must be taken into account. Indeed, the CJEU specifies, in its judgment *GC and others v. CNIL*, referring to the judgment of the ECHR *M.L. and W.W. v. Germany*²², the following:

« It is thus for the operator of a search engine to assess, within the framework of a request for de-referencing concerning links to web pages on which information relating to a criminal judicial procedure conducted against the individual concerned is published, which relates to a prior stage of that procedure and no longer corresponds to the current situation, whether, having regard to all the circumstances of the case, such as the nature and seriousness of the offense in question, the course and outcome of that procedure, the time elapsed, the role played by that person in public life and their past behavior, the public interest at the time of the request, the content and form of the publication as well as the repercussions of it for that person, that person has the right for the information in question not to be, at the current stage, linked to their name by a list of results displayed following a search conducted using that name (the Contentious Chamber emphasizes) » 23.

64. In this case, starting from the relevant criteria to be considered according to the case law of the CJEU, and in support of all the elements presented to it, the Contentious Chamber argues that in this case the result of the balancing of interests to be carried out, in application of Article 17.3.a) of the GDPR, between the right to data protection, on the one hand, and the right to freedom of information, on the other hand, leans in favor of the

21 CJEU, September 24, 2019, *GC and others v. CNIL*, C-136/17, ECLI:EU:C:2019:773, paragraphs 66 to 68.

22 European Court of Human Rights (hereinafter "ECHR"), June 28, 2018, *M. L. and W. W. v. Germany*, CE:ECHR:2018:0628JUD006079810, paragraphs 89 and 100 to 102.

23 CJEU, September 24, 2019, *GC and others v. CNIL*, C-136/17, op. cit., paragraph 67.

right to data protection of the complainant, as well as to the removal, via the search engine, of the accessibility of said information. The exception provided for in Article 17.3.a) of the GDPR did not apply in this case, and the defendant should have complied with the request for deletion made on the basis of Article 17.1 of the GDPR. The Contentious Chamber indeed considers that the referencing by the defendant of the disputed URLs is not strictly necessary for the exercise of the right to freedom of information of internet users for the reasons set out below.

(i) The disputed content contains sensitive judicial data:

65. In accordance with the aforementioned case law, particular attention must be paid to the sensitivity of the data. The infringement of the fundamental rights of the individual concerned can indeed be particularly serious when the referencing concerns data covered by Articles 9 or 10 of the GDPR (paragraphs 62 to 63).

66. Regarding the scope of Article 10 of the GDPR, the CJEU has specified that information relating to a judicial procedure — such as that concerning an investigation, a trial, or, where applicable, a conviction — constitutes data relating to "offenses" and "criminal convictions" within the meaning of this article, regardless of whether, during this judicial procedure, the commission of the offense for which the person was prosecuted has been effectively established or not²⁴.

67.

In this instance, the disputed content consists of decisions of the Council of State ruling on annulment appeals concerning two measures extending the preventive suspension of the complainant (paragraphs 3 to 4). This decision of preventive suspension, as well as its two extensions, was adopted following allegations of sexual harassment made by one of his students. Although of an administrative nature, the decisions of the Council of State refer to the criminal complaint filed for sexual harassment.

68. For these reasons, the disputed data must be classified as data relating to criminal offenses within the meaning of Article 10 of the GDPR, and their referencing by the defendant could only be justified if it were strictly necessary for the protection of the freedom of information of internet users. The dismissal of the criminal complaint does not preclude this finding. These elements are not contested by the defendant.

24 CJEU, September 24, 2019, *GC and others v. CNIL*, C-136/17, *op. cit.*, paragraph 72.
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(ii) The disputed content and the facts it relates to are no longer current

69. The relevance of information is often closely linked to its timeliness, and the passage of time is a determining factor in being able to invoke the right to be forgotten. In this regard, the Article 29 Working Party also explains that:

“Relevance is also closely linked to the age of the data. Depending on the facts of the case, information published a long time ago, for example 15 years ago, may prove to be less relevant than information published a year ago (the Contentious Chamber emphasizes)”²⁵.

70. In this case, the complaint against the complainant dates back to 2008, his preventive suspension occurred in 2009, and the two decisions of the Council of State relating to these facts date from 2009 and 2012 (points 2 to 4).

71. The defendant does not contest that the content, as well as the facts it relates to, is somewhat dated; however, it argues that they retain their relevance for the public as the complainant is still performing his duties as a teacher to this day.

72. The Contentious Chamber considers that in this case, given that the disputed content, as well as the facts it relates to, is on average over 15 years old, the relevance of its accessibility on the defendant's search engine is difficult to justify today. This significant lapse of time constitutes a sufficiently long period to warrant delisting, when this element is taken in combination with the other criteria mentioned below. While the fact that the content is linked to the professional life of the complainant may have conferred some relevance at the time when the suspicions arose and for a certain period thereafter, it remains that suspicions of harassment reported in a dispute initiated by the person concerned against a decision of the Minister regarding him should not follow the complainant throughout his career, especially since it has been established subsequently that he was not convicted of the offense in question (see point 81).

73. For these reasons, as well as those mentioned below, the Contentious Chamber believes that the information in question was outdated and no longer relevant for internet users.

25 Article 29 Working Party, *op. cit.*, p. 18.

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(iii) The complainant plays no role in public life

74. According to the opinion of the CJEU, guidelines from the EDPB, the fact that the person concerned plays no role in public life is a determining factor in favor of the delisting of the disputed information. The status of a public figure or the role played in public life is therefore a predominant element in weighing the interests at stake. Indeed, according to the EDPB, which echoes the words of the CJEU:

“The Court has also considered that the rights of the person concerned generally prevail over the interest of internet users in accessing information through the search engine provider. However, it has identified several factors that may influence this balancing, including the nature or sensitivity of the information, and in particular the interest of internet users in having access to this information, which

may depend on the role played by the person concerned in public life (the Contentious Chamber emphasizes)”²⁶.

75. In order to determine whether a person concerned meets this criterion, reference should be made to the clarifications provided by the Article 29 Working Party Guidelines which state:

“It is not possible to definitively establish the type of role in public life that a natural person must play to justify public access to information about that person through an internet search.

However, by way of example, politicians, high-ranking officials, business people, and members of regulated professions can generally be considered to play a role in public life. There are reasons to allow the public to seek information regarding the role and activities of these individuals in public life”²⁷.

76. In this instance, the Contentious Chamber notes that the complainant does not hold any public office and that his status as a teacher in higher education cannot, on its own, confer upon him a role in public life. Outside the local academic environment, the complainant is an unknown individual to the general public. He has no particular notoriety and, apart from the disputed content referenced, a Google search conducted using his name yields no press articles concerning him. The Contentious Chamber also takes into account the behavior of the complainant who, since the events, has not sought to make his situation public by, for example, contacting the media.

26 EDPB, Guidelines 05/2019 on the criteria for the right to be forgotten under the GDPR in the case of search engines, version 2.0, July 7, 2020, op. cit.

27 Article 29 Working Party, op. cit., p. 15-16.

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(iv) Although relating to the complainant's professional life, the disputed content is no longer relevant to the public, as it only involved allegations that did not lead to a conviction.

77.

Given that the complainant plays no role in public life, it is up to the Contentious Chamber to determine whether the disputed information pertains to his private life or is of a professional nature. In principle, information relating to the private life of a person who does not play a role in public life should be considered irrelevant. As noted by the Article 29 Working Party in its aforementioned guidelines:

“Information is more likely to be relevant if it relates to the current professional life of the person concerned, but this will depend greatly on the nature of that person's work and the legitimate interest of the public in accessing that information through a search of their name (the Contentious Chamber emphasizes).”

78.

The Contentious Chamber notes that, as highlighted by the defendant (point 18), the disputed content concerns the complainant's professional life, given that the decisions of the Council of State referenced by the defendant relate to the extensions of the preventive suspension linked to his activities, notably his position as a teacher.

79.

That said, it is necessary to establish whether the disputed information is still relevant to the public today. As noted by the Article 29 Working Party in its guidelines, the relevance of information is assessed based on the facts of the case and the age of the data. The relevance of the information must also be examined in light of its contribution to a public interest debate (points 82 to 85). It has already been established above that the disputed content, as well as the reported facts, are old; therefore, to determine their current irrelevance, it is necessary to examine the nature and severity of the facts in question. In this regard, the Article 29 Working Party explains in its aforementioned guidelines that:

“In general, data protection authorities are more likely to consider the de-referencing of search results relating to relatively minor offenses that were committed a long time ago than to consider it for more serious offenses that were committed more recently (the Contentious Chamber emphasizes).”

80. The defendant considers that the complainant was suspended due to facts that she qualifies as serious, namely suspicions of sexual harassment towards students, while he was working as a teacher. However, the complainant recalls that the criminal complaint was dismissed by the public

prosecutor's office in 2009 and that it only involved suspicions that did not lead to a conviction, dating back approximately fifteen years.

81.

The Contentious Chamber considers, without minimizing the impact of sexual harassment, that the facts in this case — assuming they are proven — cannot be classified as being of such gravity that the passage of time would not diminish their significance in the context of the analysis of a right to erasure. In other words, the Contentious Chamber takes into account, in balancing the interests at stake, the fact that these are mere suspicions of an offense, of a relatively minor nature, which, in any case, have been dismissed for many years. Furthermore, the Contentious Chamber emphasizes that the complainant was only suspended as a precaution, pending the continuation of judicial proceedings and a possible disciplinary decision. It appears that the complainant was able to resume his teaching duties, without any disciplinary or criminal sanction being imposed against him for the disputed facts. The fact that the Council of State, as reported in URL No. 1, annulled the ministerial decision regarding the second extension of the preventive suspension also supports this finding (point 4).

(v) The disputed content does not contribute to a public interest debate

82.

It is then necessary to verify whether, at the time the complainant submits his requests for de-referencing, the disputed content still contributes, if it ever did, to a public interest debate.

83. The defendant argues that the disputed content is part of a public interest debate concerning the fight against sexual harassment, particularly in the context of movements such as "Me Too" or "Balance ton porc." Given the societal importance of these issues and their wide media resonance, she believes that there is a predominant public interest in the dissemination and access to the information in question, and asserts that the referencing of the disputed content contributes to informing the public within the framework of this debate.

84. The Contentious Chamber believes that the initial publication of the decisions of the Council of State on the site [...] did not aim to inform internet users of the existence of a complaint for sexual harassment against the complainant, nor of the extension of a preventive suspension measure concerning him. Indeed, it is a reproduction, without alteration, of the decisions of the Council of State, without any analysis or commentary accompanying their publication that could foster any identified public interest debate. This is explained by the fact that the site [...] presents itself as a legal platform, intended

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to lawyers and other legal professionals, aimed at facilitating legal research by providing access to case law, legislation, and doctrine from various countries around the world. The interest in the contentious content is therefore purely legal, as it seeks to offer users of the site [...] access to a digital collection, notably of the case law of the highest administrative jurisdiction of the country. This objective can be achieved without linking the said judgments to the identity of the complainant. Furthermore, it should be noted that the Council of State only addresses administrative aspects, namely, in this case, the examination of the validity of government orders confirming the decision to provisionally suspend the complainant. The Council of State is not competent to rule on the criminal complaint, which renders these judgments of little, if any, relevance to the public interest debate identified by the defendant.

85. For these reasons, the Contentious Chamber considers that, in this case, more than fifteen years after the events in question and given that the sexual harassment complaint has been dismissed, the referencing of the identity of the complainant, who is not a public figure, adds no value to the public interest debate on the fight against sexual harassment. The initial publications, namely the judgments of the Council of State concerning the measure of provisional suspension, today hold only a purely legal interest, which does not justify being linked to the identity of the complainant via the defendant's search engine. To reach this conclusion, the Contentious Chamber also took into account the fact that the events in question have not been subject to any particular media coverage or notable public attention, either at the time of their occurrence or during the publication of the various judgments of the Council of State. Consequently, even at the time, their potential contribution to a public interest debate appeared to be particularly limited.

(vi) The contentious content may give a misleading impression of the complainant

86. The issue of the accuracy of the referenced content is also an important element to consider in the assessment of the conditions for application provided for in Article 17.3.a) of the GDPR, in order to determine whether the right to information of internet users prevails over the rights of the person requesting de-referencing. Indeed, if the contentious content is found to be predominantly inaccurate, the right to inform and the right to be informed cannot prevail. In this regard, the Article 29 Working Party states the following in its guidelines:

30 "About Us," website [...] available at: [...] (accessed April 10, 2025).

31 CJEU (Grand Chamber), December 8, 2022, TU, RE v. Google LLC, C-460/20, ECLI:EU:C:2022:962, paragraph 64.

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"The delisting of a search result is appropriate in cases of inaccuracy regarding a fact and if the information is inaccurate, inadequate, or gives a misleading impression about a person (the Contentious Chamber emphasizes)"³².

87. The complainant argues that the information, as presented in the disputed content, is inaccurate, notably in that the sexual harassment complaint did not result in any conviction. He emphasizes that internet users who are not subscribed to the site [...], when searching for his name on Google, only had access to the first lines of the ruling, which simply mention that a complaint was filed against him and that he was suspended from his duties. He considers that the information thus made public is incomplete, which he believes fundamentally renders it false.

88. The Contentious Chamber finds that the disputed information is not inaccurate in the sense that it contains factual errors, insofar as the site [...] faithfully reproduces the rulings as published on the official website of the Council of State. However, it considers that this information is presented in an incomplete manner and is likely to give a misleading impression regarding the current situation of the complainant. In particular, the Chamber notes that the sexual harassment complaint did not result in any conviction and was dismissed in 2009. However, the referenced URLs only provided access to a truncated version of the Council of State's rulings. The internet user was not aware—except by creating an account on [...] or by consulting the full ruling on the Council of State's website—of the dismissal of the complaint that led to the preventive suspension, nor of the annulment of the second extension of the preventive suspension. This partial presentation of the disputed content was therefore likely to mislead or, at the very least, did not provide sufficient context for internet users to correctly understand the complainant's situation, which could lead to an erroneous negative image.

(vii) The repercussions of the referencing on the personal situation of the complainant

89. As recognized by the CJEU in its ruling *Google Spain*, the person concerned does not have to demonstrate the existence of any harm in order to request delisting³³. That said, the Article 29 Working Party specifies, in its guidelines: "If it is proven that the availability of a search result causes harm to the person concerned, such proof would constitute a strong argument in favor of delisting. (...) The data could have a negative impact

32 Article 29 Working Party, *op. cit.* p. 17.

33 CJEU, May 13, 2014, *Google Spain SL and Google Inc. v. AEPD and Mario Costeja González*, C-131/12, *op. cit.*, para. 96.

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disproportionate to the individual concerned if a search result relates to a minor or trivial offense that is no longer – or may never have been – the subject of public debate and if there is no significant public interest in making this information available.

(...) The data protection authorities will recognize that the availability of certain information on the internet may expose individuals to certain risks, such as identity theft or harassment, for example. In such cases, when the risk is significant, the data protection authorities are likely to consider that the delisting of a search result is appropriate (the Contentious Chamber emphasizes).

90. The Contentious Chamber believes that the indexing of contentious content should not create a kind of "virtual criminal record." Suspicions of sexual harassment against the complainant did not lead to a conviction; however, the continued indexing of the contentious content, which conveyed an

outdated and incomplete image of the facts attributed to him, continued to cause him disproportionate moral harm. In this instance, the complainant mentioned during the hearing that he suffers from a constant feeling of anxiety due to the high accessibility of the contentious content, which appears at the very top of the search results when his name is typed into Google. He explained that the indexing of these URLs had serious consequences for his professional and private life. Professionally, he indicated that he lost significant job opportunities, including a research project, after colleagues discovered this information online. Privately, he specified that this situation also had a significant impact on his relationship, contributing to a breakup with his partner.

91.

In these circumstances, in light of all the elements mentioned above (points 65 to 90) and considering the repercussions that the indexing of this content was likely to have on the personal situation of the complainant, access to this online content from his name could no longer be considered strictly necessary for informing users of the Google search engine.

III. Sanctions and corrective measures

92.

Under Article 100§1 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint;

2° order the dismissal;

34 Article 29 Group, *op. cit.*, pp. 21 and 22.

35 See point 255 of the Grand Chamber judgment of the European Court of Human Rights in *Hurbain v. Belgium*, delivered on July 4, 2023. In this case, the European Court of Human Rights confirmed the anonymization of an archived newspaper article on the website of the daily *Le Soir*, reporting on a fatal road accident that occurred many years earlier. However, the context is different from the present case, as it was not a request for delisting a link from a search engine.

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3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings and reprimands;

6° order compliance with the requests of the concerned individual to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance of the processing;

10° order the rectification, restriction, or deletion of data and the notification of such to the recipients of the data;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° forward the file to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

93. The Contentious Chamber notes that the disputed URLs are no longer accessible at present.

These links no longer contain any personal data concerning the complainant and are no longer referenced by the defendant when the complainant's name is searched in the search engine.

Consequently, there is no longer any need for the Contentious Chamber to order their de-referencing. The fact that the disputed URLs are no longer accessible does not prevent the Contentious Chamber from examining the compliance with the exception invoked by the defendant for not responding to the de-referencing requests based on Article 17.3.a) of the GDPR when they were still accessible.

However, the Contentious Chamber is of the opinion that it follows from the balancing carried out in support of all the previous elements that the public did not have a strictly necessary interest in accessing the disputed URLs on the defendant's search engine to the extent that it was justified to

de-reference the concerned URLs. The passage of a significant amount of time, the sensitivity of the data, combined with the absence of the complainant's role in public life and the lack of contribution of the disputed information to a debate of general interest, has considerably diminished the interest that the public could have had in the information in question, which moreover only concerned allegations that did not result in a conviction, but only in a preventive suspension. The referenced content could create a misleading impression of the complainant and was likely to cause them disproportionate harm (point 90). Given all the circumstances of the case, the

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Contentious Chamber decides to issue a reprimand to the defendant for the breaches observed under Articles 17.1 and 17.3.a) of the GDPR.

94. Regarding the breaches observed under Articles 12.1 and 12.4 of the GDPR, the Contentious Chamber decides to issue a reprimand to the defendant, taking into account all the circumstances of the case and for the reasons it has developed above (points 39 to 58).

The Contentious Chamber limits itself to these sanctions given the specific circumstances of the case, namely that this decision is the first adopted by the Contentious Chamber concerning the details of the responses to be provided in the event of a de-referencing request, but also in light of the considerable efforts - albeit insufficient in this case - made by Google to process the 4,300 requests received on average per year in Belgium and respond to them. However, in the future, the Contentious Chamber reserves the right to impose a fine on the defendant if similar violations are found. This also justifies issuing a warning to the defendant if it should, in the future, fail to demonstrate compliance with Articles 12.1 and 12.4 of the GDPR when notifying the concerned individual of the reasons for not responding to a de-referencing request.

IV. Publication of the decision

95. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority, with the removal of direct identification data of the complainant and the cited individuals, whether natural or legal, excluding the defendant. The Contentious Chamber believes that the publication of this decision identifying the defendant serves several objectives.

96. It primarily aims at a public interest objective, considering the importance of the search engine "Google" for many internet users and the fact that a very large number of people residing in Belgium are referenced in one way or another by the search engine "Google." The Contentious Chamber finds it relevant to give this decision publicity that raises awareness among internet users of the rights they have under the GDPR. In this respect, even though the decision directly concerns only the complainant (whose identification data is not published), it is also of interest to a large part of the general public.

36 "Content removal requests under European privacy legislation," Google website available at: <https://transparencyreport.google.com/eu-privacy/overview?hl=fr&requests; over time=country:BE&lu;=privacy requests&delisted; urls=start:1713657600000;end:1745452799999;country:BE&privacy; requests=country:BE;year::decision:> (consulted on April 10, 2025).